

3rd May 2018

Proposed changes to conditions and conditions to be deleted from planning permission 16/01802/OUT

Condition 2 *"Except where otherwise stipulated by condition, the development shall be carried out strictly in accordance with the following plans and documents: Application forms, Environmental Statement and drawings numbered:*

Approved	Current
1982-A-L-005-B [MOD Bicester Application Site Red Line]	
1982-A-L-010-K [Proposed Master plan]	R
1982-A-L-035-B [Building Density Constraints]	D
1982-A-L-050-F [Land Transfer Areas]	O
1982-A-L-050-F [Land Transfer Areas]	
1982-A-L-060-B [Commercial Areas Sheet 1]	H
1982-A-L-061-B [Commercial Areas Sheet 2]	Delete
1982-A-L-551-Q (19.05.14) [Proposed phasing boundaries - Land	Superseded by 1982-A-L-573-U
1982-A-L-073-G (3.3.14) - [Primary School Plan]	I
1982-A-L-074-D (19.5.14) - [Primary School Title Plan Land Transfer 1]	F
1982-A-L-075-D (19.5.14) [Primary School Title Plan Land Transfer 2]	H
1982-A-L-550 (16.5.14) [Proposed Bus Route Land Transfer 1 and 2]	H
1982-A-L-553 (19.5.14) [Spine Road Location Land Transfer 1 and 2]	G
1982-A-L-573 Rev U {	
1982-A-L-609 Rev G {Site Phase Boundaries}	
27808-L508a (December 2012) - Landscape Screening Proposals	
27808-LEA520a (December 2012) - C Site strategic masterplan	
27808-L509 (December 2012) - C Site: Proposed Sections	



27808-L506 (December 2012) - C Site: Screen planting to west boundary	
27808-L415 (September 2011) - MOD Bicester application sites	
27808-L464.dwg.smitv (September 2011) - A41/Pioneer Road mitigation scheme	
27808-L463 (September 2011) - A41/Gravenhill Road/B4100 mitigation scheme (signal)	
GHD-RGL-00-00-DR-D-100-1001_S1-P1 RHR	

Condition 28: “Each reserved matters application shall refer to a phase, phases, or part thereof as identified in the approved phasing plan: Drawing Nos.”

Approved	Current
1982 A-L-609	G
1982 A-L-572 Rev I	Delete: superseded by 573-U
1982 A-L-573 Rev H	U

Condition 29:

Condition 30 “The maximum building heights for residential properties at Graven Hill site shall not exceed those shown on Drawing No: 1982-A-L-030-K”.

Amended drawing 1982-A-L-300

Condition 32: “The dwellings hereby approved shall be constructed so as to achieve the minimum standards for Graven Hill residences as detailed at Section 4 of the Passive Design Standards Rev. F (October 2015) prepared by Hoare Lea Sustainability and shown on page 5 of The Design Code 2017, or such alternative minimum construction standards as are first submitted to and approved in writing by the Local Planning Authority.”

Our consultants recommend that Passivhaus is requested as an assessment option: It would add flexibility if design teams can choose whether they would prefer to build to Passivhaus or BREEAM Excellent requirements.”

Condition 33: “All non-residential buildings hereby approved on Graven Hill shall be constructed to at least a BREEAM 'Excellent' standard, or such other standard as has first been submitted to and approved in writing by the Local Planning Authority, including as part of the reserved matters.”

Our consultants further recommend that the requirement to achieve BREEAM Excellent for all non-residential plots on the Graven Hill site should be clarified to set a minimum threshold limit on the size of units that should be assessed under BREEAM. From experience, the numerous requirements for documentation, site management and registration posed by BREEAM are prohibitive for the project teams on small developments. A suggested minimum threshold building area is 500m² NIA;



i.e. any non-residential building below this size on site would be exempt from the BREEAM requirement.

The suggested amended wording to Condition 33, first paragraph is: therefore:

“All non-residential buildings above 500m² GIA hereby approved on Graven Hill shall be constructed to at least a BREEAM ‘Excellent’ standard OR Passivhaus standard, except retail development which shall be constructed to at least a BREEAM ‘Very Good’ standard. Within 6 months of occupation a final BREEAM or Passivhaus certificate shall be issued, proof of which shall be submitted to and approved in writing by the Local Planning Authority.”

Condition 42 *“In respect of Phase 0, Phase 1a and Phase 1b as shown on Drawing No: 1982-A-L-572-I, the development at Graven Hill site shall proceed in accordance with the recommendations and mitigation contained in the approved Protected Species Report dated February 2015 prepared by Waterman Energy, Environment & Design Ltd”.*

Now Drawing No. 1982-A-L-573 Rev U

Condition 43 *“In respect of Phase 0, Phase 1a and Phase 1b as shown on Drawing No: 1982-A-L-572-I, the development at Graven Hill site shall proceed in accordance with the approved Habitat Creation and Management Plan dated March 2015 prepared by Waterman Energy, Environment & Design Ltd.”*

Now Drawing No. 1982-A-L-573 Rev U

Condition 44 *“In respect of Phase 0, Phase 1a and Phase 1b as shown on Drawing No: 1982-A-L-572-I, the development at Graven Hill site shall be carried out in accordance with the approved Traffic and Logistics Management Plan (Graven Hill Infrastructure - 3252 Rev A) dated April 2013 prepared by Careys”*

Now Drawing No. 1982-A-L-573 Rev U

Condition 47 *“With the exception of Phase 0, Phase 1a and 1b as shown on Drawing No: 1982-A-L-572-I, prior to the commencement of each phase of development revised species surveys as set out in table 12.3, Chapter 12, Volume 2 of the Environmental Statement shall be undertaken to establish changes in the presence, abundance and impact on badgers, bats, dormice, great crested newts, reptiles, birds and invertebrates. The survey results, together with any necessary changes to the mitigation plan or method statement shall be submitted to and approved in writing the Local Planning Authority. Thereafter, the development shall be carried out in accordance with the approved details.”*

Now Drawing No. 1982-A-L-573 Rev U

Condition 48 *“With the exception of Phase 0, Phase 1a and Phase 1b as shown on Drawing No: 1982-A-L-572-I, prior to work commencing on any phase at Graven Hill, a Habitat Creation Plan, identifying how existing biodiversity on the site will be maintained and a net bio diversity gain will be delivered, shall be submitted to and approved in writing by the Local Planning Authority. The Plan shall thereafter be implemented in accordance with the phasing set out in the plan”.*



Now Drawing No. 1982-A-L-573 Rev U

Condition 49 *“With the exception of Phase 0, Phase 1a and Phase 1b as shown on Drawing No: 1982-A- L-572-I, prior to the commencement of the development on any phase hereby permitted on Graven Hill, a comprehensive intrusive investigation in order to characterise the type, nature and extent of contamination present, the risks to receptors and to inform the remediation strategy proposals shall be documented as a report undertaken by a competent person and in accordance with DEFRA and the Environment Agency's 'Model Procedures for the Management of Land Contamination, CLR 11' and submitted to and approved in writing by the Local Planning Authority. The report shall identify clearly the phase to which it relates and the relationship to remediation of phases already completed and to those remaining to be undertaken. No development shall take place unless the Local Planning Authority has given its written approval that it is satisfied that the risk from contamination has been adequately characterised as required by this condition.”*

Now Drawing No. 1982-A-L-573 Rev U

Condition 51 *“With the exception of Phase 0, Phase 1a and Phase 1b as shown on Drawing No: 1982-A- L-572-I, prior to the commencement of each phase relating to the Graven Hill site, including any demolition and any works of site clearance, a Construction Environment Management Plan (CEMP) relating to that phase shall be submitted to and approved in writing by the Local Planning Authority. As a minimum, the CEMP shall include:*

o Measures to minimise the environmental impacts of noise, vibration, smells, dust and fumes resulting from construction

o Measures to ensure that construction works do not adversely affect biodiversity

Thereafter, the development shall be carried out in accordance with the approved CEMP”

Now Drawing No. 1982-A-L-573 Rev U

Condition 52 *“With the exception of Phase 0, Phase 1a and Phase 1b as shown on Drawing No: 1982-A- L-572-I, prior to the commencement of each phase relating to the Graven Hill site, a Construction Management Travel Plan (CMTP) relating to that phase shall be submitted to and approved in writing by the Local Planning Authority. As a minimum, the CMTP shall include:*

o Details of all construction activity

o Details of wheel washing facilities

o Restrictions on construction & delivery traffic

o Details of construction routes to the Graven Hill development site

Thereafter, the development shall be carried out in accordance with the approved CMTP”

Now Drawing No. 1982-A-L-573 Rev U

Condition 53 *“With the exception of Phase 0, Phase 1a and Phase 1b as shown on Drawing No: 1982-A- L-572-I, prior to the commencement of each phase relating to the Graven Hill site, an Arboricultural Method Statement (AMS) relating to that phase, undertaken in accordance with BS:5837:2012 and all subsequent amendments and revisions, shall be submitted to and approved in*



writing by the Local Planning Authority. Thereafter, the development shall be carried out in accordance with the approved AMS”.

Now Drawing No. 1982-A-L-573 Rev U

Condition 54 *“With the exception of Phase 0, Phase 1a and Phase 1b as shown on Drawing No: 1982-A- L-572-I, prior to the commencement of each phase relating to the Graven Hill site, details of existing and proposed ground levels of the highway and public realm infrastructure (referred to as "off plot features" in the Design Code 2017) shall be submitted to and approved in writing by the local planning authority. The details shall include measures to deal with any arisings on site wherever possible”.*

Now Drawing No. 1982-A-L-573 Rev U

Condition 56 *“The development of Graven Hill shall not be occupied until:*

(a) In respect of Phase 0, Phase 1a and Phase 1b as shown on Drawing No: 1982-A-L- 572-I, the remedial works have been carried out in accordance with the approved Remediation Options Appraisal and Remediation Strategy Report for Land Transfer Area 1 (ref: WIB13983-104-R-2-2-3-MA-MACF dated January 2016) prepared by Waterman Infrastructure & Environment Ltd. A verification report that demonstrates the effectiveness of the remediation carried out must be submitted to and approved in writing by the Local Planning Authority.

(b) In respect of all subsequent phases, if remedial works have been identified in condition 50, the remedial works have been carried out in accordance with the scheme approved under condition 50. A verification report that demonstrates the effectiveness of the remediation carried out must be submitted to and approved in writing by the Local Planning Authority”.

Now Drawing No. 1982-A-L-573 Rev U

Condition 57: *“Prior to the first occupation of the Graven Hill development, other than the development of Phase 0 as shown on Drawing No: 1982-A-L-572-I, the proposed Entrance Works (A41/Graven Hill Road/B4100/A4421 roundabout) as shown on Figure 11.3 in the accompanying Transport Assessment, drawing reference 27808-L463 (September 2011) - A41/Gravenhill Road/B4100 mitigation scheme (signal), between the land and the highway shall be formed, laid out and constructed strictly in accordance with the Local Highway Authority's specifications and that all ancillary works specified shall be undertaken.”*

It is requested that this condition be amended to relate to “prior to 100 occupations”, and to relate to the drawing and report attached (2017-01-11 Graven Hill Tech Note, and TM1 and TM2). It is our view and that of our traffic consultants that that the proposals will have no greater effect on the highway than the previous use by the Ministry of Defence. Positive discussions are underway with the County Council in respect of including enhanced pedestrian and cycle routes as part of temporary traffic management proposals, and I attach the latest report and plans

Condition 58: *“Prior to the first occupation of the Graven Hill development, other than the development of Phase 0 as shown on Drawing No: 1982-A-L-572-I, a construction timetable for the proposed works at Pioneer/A41 roundabout, as shown on Figure 11.4.3 in the accompanying Transport Assessment and drawing reference 27808-L464 (September 2011) - A41/Pioneer Road*



mitigation scheme, between the land and the highway shall be agreed. The agreed timetable shall thereafter be adhered to and the works shall be formed, laid out and constructed strictly in accordance with the Local Highway Authority's specifications and all ancillary works specified shall be undertaken. There shall be no occupation of Phase 2 (residential) or Phase 1, 2 or 3 of commercial land, as set out in the phasing plan on page 178 of the Design and Access statement, until the agreed works have been implemented in accordance with the timetable, unless otherwise agreed in writing by the Local Planning Authority."

It is requested that this condition be deleted. The same issues are covered by the s106 agreement at Schedule 18, which requires payments to be made to the County Council to allow them to carry out the works; other than this, the developer has no control over the timing of the works, and it is therefore unreasonable for him to be constrained by the actions (or otherwise) of a third party.

Condition 63: *"In respect of Phase 0, the reserved matters shall be made in accordance with the approved Masterplan and Design Code, comprising of the following documents:*

Approved	Current
Drawing No: 1982-A-L-010-H Proposed Masterplan	R
Drawing No: 1982-A-L-011-I Proposed Masterplan Northern Area	Y
Drawing No: 1982-A-L-040-N Proposed Land Use Plan	Z
Drawing No: 1982-A-L-030-J Building Height Constraints	M
Drawing No: C-SA-90-406-A09 Road Hierarchy Plan	
Drawing No: 1982-A-L-510-I Typical Road Sections	
Drawing No: EED13983-107_GR_LD_15_RevD Strategic Landscape and Habitat Masterplan	
Drawing No: 1982- A-L-020 Rev F	
Graven Hill Design Code 2015 received by the Local Planning Authority on 04.09.15	
Street Hierarchy Summary dated 02.09.15 prepared by Glenn Howells Architects	

Condition 71: *"In respect of Phase 1a and 1b, the reserved matters shall be made in accordance with the approved Masterplan and Design Code, comprising of the following documents:"*

Approved	Current
<i>Drawing No: 1982-A-L-010-K Proposed Masterplan</i>	R
<i>Drawing No: 1982-A-L-011-U Proposed Masterplan Northern Area</i>	Y
<i>Drawing No: 1982-A-L-040-T Proposed Land Use Plan</i>	Z
<i>Drawing No: 1982-A-L-030-K Building Height Constraints</i>	M
<i>Drawing No: C-SA-90-0458-A10 Road Hierarchy Plan</i>	



<i>Drawing No: 1982-A-L-510-L Typical Road Sections</i>	
<i>Drawing No: EED13983-107_GR_LD_15_RevE Strategic Landscape and Habitat Masterplan</i>	
<i>Drawing No: 1982-A-L-741 Rev K Phase 1 Parameter Plan (1 of 4)</i>	R
<i>Drawing No: 1982-A-L-742 Rev K Phase 1 Parameter Plan (2 of 4)</i>	S
<i>Drawing No: 1982-A-L-743 Rev K Phase 1 Parameter Plan (3 of 4)</i>	R
<i>Drawing No: 1982-A-L-744 Rev L Phase 1 Parameter Plan (4 of 4)</i>	P
<i>Drawing No: 1982-A-L-562 Rev G Masterplan Pedestrian and Cycle Network</i>	K
<i>Graven Hill Design Code 2017 received by the Local Planning Authority on 24.05.2017</i>	Amended Kim Swallowe 17/01/18
<i>Street Hierarchy Summary dated 27.04.2017 prepared by Glenn Howells Architects</i>	

Kind Regards

John Jowitt

PJPlanning

Email john.jowitt@pjplanning.com
Mobile 07974 239016